Massachusetts AI Guidance: Data and Student Privacy Passages

Excerpted verbatim from *Massachusetts Guidance for Artificial Intelligence in K–12 Education* (Massachusetts DESE). Page numbers match the guidance's own page numbering. Passages marked [graphic] were transcribed from images in the original. Ellipses (…) mark omitted text. Action steps repeated in the Appendix checklists (pages 63–71) are not reproduced again.

Understanding AI in Education: What Is AI?

Source: page 6

In educational contexts, AI tools may help personalize instruction, streamline teacher tasks, improve accessibility, automate scheduling or resource allocation, and support decision-making. As these systems grow more autonomous, they also raise important questions about equity, privacy, accuracy, and control.

Preparing for an AI-Embedded Future (excerpt)

Source: page 8

As AI becomes ambient—quietly influencing how information is delivered, analyzed, and assessed—it also becomes harder to monitor, govern, and explain. This introduces significant risks:

- **Loss of transparency.** Students, educators, and families may be unaware of when and how AI is shaping educational experiences.
- **Lack of informed consent.** Tools may collect and/or use personal data or generate outputs that affect learning without clear documentation or disclosure.

Core Principles: Data Privacy & Security

Source: page 10

[graphic] DATA PRIVACY & SECURITY

To help anchor local policy and guidance development, the Department of Elementary and Secondary Education recommends that districts adopt the following:

DATA PRIVACY & SECURITY

AI use complies with all relevant laws and policies related to student data, including FERPA and COPPA, and upholds strong data governance practices. Students and families are protected from unnecessary surveillance, data sharing, or automated decision-making without consent.

What could this look like?

- Districts only approve AI tools vetted through a data privacy agreement process.
- Schools teach students how their data is used when they interact with AI systems.

Applying the Core Principles (excerpt)

Source: page 12

- If you’re designing PD for staff, ask: Are we equipping teachers to identify harmful bias and maintain student data privacy?

Implementation Framework: Supplemental Resources (excerpt)

Source: page 22

Report of the NEA Task Force on Artificial Intelligence in Education: This report outlines five guiding principles for the ethical, equitable, and effective use of AI in education. Drawing on educator insights and research, it addresses AI's impact on teaching, learning, disability access, data privacy, and educator agency.

Equity and AI: Supplemental Resources (excerpt)

Source: page 27

Addressing the Digital Divide: 5 Goals Every District Must Reach (webinar/podcast): Goals include: 1) reliable access for all learners, 2) current and compatible devices for all students, 3) digital skills that match career readiness, 4) keeping student information secure, and 5) ensuring digital learning is accessible.

Washington's Human-Centered AI Guidance for K–12 Public Schools (excerpt): The document also provides actionable guidelines for education leaders, IT professionals, teachers, students, and families, emphasizing equitable access, data privacy, bias detection, and continuous community engagement.

Legal Foundations for AI Use: Why This Matters

Source: page 29

As AI is further embedded into K–12 education, schools and districts must ensure that its use complies with legal obligations that protect students' rights. These include requirements around privacy, accessibility, data governance, and public accountability. Legal compliance is not just a technical responsibility—it is foundational to maintaining trust and student safety.

AI use in education brings new layers of complexity to long-standing legal frameworks. Some tools may collect or process sensitive data, produce content that qualifies as educational records, or interfere with accessibility if not properly designed. As technology evolves, so too must district-level policies and procedures that safeguard legal compliance.

Legal Areas to Monitor (excerpt)

Source: page 29

Student Privacy

- FERPA (Family Educational Rights and Privacy Act) – Protects access and disclosure of student education records.
- COPPA (Children's Online Privacy Protection Act) – Regulates online services used by children under 13.
- PPRA (Protection of Pupil Rights Amendment) – Governs surveys and data collection involving sensitive topics.
- Massachusetts Student Records Regulations (603 CMR 23.00) - "[I]nsure parents' and students' rights of confidentiality, inspection, amendment, and destruction of student records and to assist local school systems in adhering to the law."

- **Data Governance and Security:** Align AI-related data collection, storage, sharing, and deletion with local and state data governance policies, including those that define educational records and consent procedures, including CIPA – Internet safety and filtering (required for E-rate funding).
- **Public Records:** AI-generated content or decisions may be subject to public records requests under Massachusetts law.
- **Procurement:** Districts must ensure vendor contracts address AI capabilities, data practices, and compliance with privacy and accessibility laws.

Legal Foundations: Action Steps (excerpts)

Source: pages 30–32

Compliance with Federal and State Laws (page 30)

- Assess how FERPA, COPPA, PPRA, IDEA, Section 504, ADA, Title VI, Title IX, EEO, and CIPA apply to AI tools in use and/or being considered.
- Utilize DESE Student Data Privacy training resources to strengthen staff knowledge and understanding.

Ongoing Legal and Data Audits (page 30)

Establishing regular review processes to assess legal compliance, identify risks, and ensure documentation of how AI systems handle sensitive data.

- Audit existing AI-related tools, including existing digital tools in which AI has been embedded, and vendor agreements for privacy, accessibility, and anti-discrimination compliance.
- Determine whether any AI-generated content qualifies as educational records or public records.

Integration of AI Guidance into Existing Policies (page 31)

- Update policies that may be impacted by the use of AI such as responsible/acceptable use, cybersecurity, data privacy, harassment and bullying, etc.

Transparency and Public Accountability (page 32)

- Determine how AI-generated content or decisions are documented and stored.
- Ensure vendor contracts clearly define AI capabilities, data use, storage, retention and destruction, and public accountability terms.

Legal Foundations: Key Questions (excerpts)

Source: page 33

- **Discuss how your district identifies and applies the laws that govern AI use, including FERPA, COPPA, PPRA, IDEA, Section 504, ADA, CIPA, and relevant Massachusetts laws.** How are these laws interpreted in the context of AI tools, and who is responsible for ensuring compliance?
- **Describe how your district audits AI tools, data systems, and third-party platforms for privacy, accessibility, and data-sharing practices.** What processes or teams are in place to lead these reviews?
- **Describe how your vendor contracts and procurement processes address AI-specific risks and responsibilities.** … What legal expectations—such as age limitations, data usage, transparency, or bias audits—are written into agreements?
- **Discuss how teachers are supported to model legally responsible AI use in classrooms.** What expectations exist for disclosing tool use and limitations, protecting student data, and ensuring equitable access?

Legal Foundations: Supplemental Resources (excerpt)

Source: page 33

- **Module 2: Privacy and Data Security (pp. 12-16):** Guidance for implementation aligned with US federal laws addressing privacy and data security, including COPPA, FERPA, IDEA, CIPA, and PPRA.
- **TEC Student Data Privacy Alliance Training Materials:** The Education Collaborative provides schools and districts with support to negotiate privacy terms with software vendors and training materials.
- **Alabama AI Policy Template for Local Education Agencies (ASDE, June 2024):** This resource outlines policies for AI governance, data privacy, procurement, risk management, and implementation, all while centering human oversight and educational equity.

AI Literacy: Teaching about AI (excerpts)

Source: pages 35–40

Why This Matters (page 35)

AI literacy also includes an understanding of personal and environmental impacts of technology use. Students can explore how their digital actions contribute to their virtual footprint, including data permanence, privacy, and ethical online behavior.

Curriculum and Instructional Integration (page 37)

- Integrate AI topics such as bias, ethics, misinformation, data privacy, algorithm use, and environmental impacts into instructional planning.

Key Questions (page 39)

- **Describe how AI literacy is embedded into curriculum planning.** How are concepts such as bias, ethical use, and data privacy integrated into core content areas—not just technology classes?

Supplemental Resource (page 40)

North Carolina Generative AI Implementation Recommendations (excerpt): It also highlights crucial topics for training such as understanding model workings, bias, hallucinations, and protecting privacy.

District Operations (excerpts)

Source: pages 55–59

Why This Matters (page 55)

AI is increasingly embedded in the tools and systems that districts use for budgeting, staffing, resource allocation, and operational decision-making. Often invisible, these systems use predictive modeling, automation, and recommendation algorithms to support leaders—but they also introduce risks related to bias, transparency, privacy, and accountability.

Procurement and Vendor Management (page 57)

- Require vendors to disclose where and how AI is used in their platforms or services.
- Include contract language requiring compliance with FERPA, 603 CMR 23.00, and all applicable data protection laws.

Key Questions: Procurement and Vendor Management (page 59)

- **Explain how vendors are vetted regarding AI model training, data handling, and equity or accessibility safeguards.** What questions or criteria are used?
- **Describe how contract language protects student data privacy when AI is involved.** How do you ensure compliance with FERPA, 603 CMR 23.00, and related laws?